

		On 11/13/25, Scot Williams ("Scot"), in propria persona, filed this motion for court approval of the filing of an amended notice of pendency of action. (ROA 168.) In Opposition to this motion, Ryan Williams ("Ryan") informs the court that the subject property was sold on 2/4/26 with Scot's approval. (ROA 450.) In Reply, Scot argues that the court can still grant or deny the request. (ROA 452.) On the contrary, the court cannot grant the request to approve the recording of a lis pendens against a property that is no longer subject to the instant probate proceeding, as there is no longer a "real property claim" pending. (Code Civ. Proc. § 405.21.) Thus, the motion is DENIED as moot. Ryan requests sanctions pursuant to Code of Civil Procedure 128.5. While the court agrees that this motion could have been withdrawn to save the parties and the court time and resources, Ryan's request for sanctions must be denied. First, requests for sanctions pursuant to Section 128.5 must be made by a motion separate from all other motions. (Code Civ. Proc. § 128.5(f)(1)(A).) Second, Section 128.5 requires a 21-day period during which a party who is served with a motion for sanctions may avoid sanctions by withdrawing the challenged pleading. (Code. Civ. Proc. § 128.5(f)(1)(B).) There is no evidence that Ryan complied with the 21-day safe harbor provision. Finally, the court notes that sanctions pursuant to Code of Civil Procedural 128.5 may have likely been denied on the merits, as well, since the underlying motion was meritorious when filed. Scot is ordered to serve notice of this ruling. [Motion Type]
01350410	Ronglien – Probate	TENTATIVE RULING Case: Ronglien – Probate 01350410

Calendar No.: 8

Date: 07/22/2026

MOTION TO BE RELIEVED AS COUNSEL (ROA 70)

Attorney Clark E. Selters seeks to be relieved as counsel for Administrator Marie Ronglien.

An attorney's right to withdraw as counsel is conditioned upon compliance with California Rules of Court, Rule 3.1362 and, where applicable, Orange County Local Rule 601.21.

California Rules of Court, Rule 3.1362 requires that three mandatory forms (i.e., MC-051, MC-052, and MC-053) be filed and served on the client and on all other parties who have appeared in the action. There is no proof of service filed in connection with this motion, but the Declaration (MC-052) indicates the motion papers were served at the client's last known address, and the court's records reflect that no other party has appeared in this action.

Counsel has not complied with Orange County Local Rule 601.21, which provides as follows: "If an attorney wishes to withdraw from a probate proceeding as attorney of record for the estate representative or any other fiduciary, in addition to the requirements under CCP 284 and CRC 3.1362, the attorney must have a citation issued and served on such motion or petition directing the representative to appear before the court to show cause why the motion or petition should not be granted or why the representative has not taken the steps to complete his or her duties."

The client is the Administrator of the estate. Though she is suspended, she still owes fiduciary duties to the estate. The court's records do not reflect that a citation was issued to the client. Counsel must file a Citation – Probate (DE-122/GC-322). Once the citation is signed by the court, counsel must have it served on the client in the same manner as a summons. (See Code Civ. Proc. § 415.10.)

If the client can be found, she must be served with a citation. If the client cannot be found, then the court might order counsel to prepare a final accounting. (Prob. Code § 10953(c).) Either way, counsel cannot be relieved at this time.

This motion is CONTINUED to 9/9/26 at 1:30 PM in Dept. CM07.

		TENTATIVE RULING Case: Calendar No.: Date:
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